EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 32242/07
Anatolie POSTOLIUC
against the Republic of Moldova

The European Court of Human Rights (Second Section), sitting on 3 Septembre 2020 as a Committee composed of:

Arnfinn Bårdsen, *President,*
Darian Pavli,
Peeter Roosma, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 8 June 2007,

Having regard to the declaration submitted by the respondent Government requesting the Court to strike the application out of the list of cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant's details are set out in the appended table.

The applicant was represented by Mr V. Balan, a lawyer practising in Chişinău.

The applicant's complaints under Articles 10 and 11 of the Convention concerning the refusal to give an authorisation to hold a meeting were communicated to the Moldovan Government ("the Government").

THE LAW

The Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issues raised by these complaints. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

The Government acknowledged the violation of the applicant's rights guaranteed under Article 11 of the Convention and submitted that no

separate issue arose under Article 10. They submitted that this declaration, together with the amendment of the law aimed at preventing further similar breaches, offered sufficient just satisfaction to the applicant.

In a subsequent declaration, the Government referred to their previous acknowledgement of the breach of the applicant's right. They further offered to pay the applicant the amount detailed in the appended table and invited the Court to strike the application out of the list of cases in accordance with Article 37 § 1 (c) of the Convention. The amount would be converted into the currency of the respondent State at the rate applicable on the date of payment, and would be payable within three months from the date of notification of the Court's decision. In the event of failure to pay this amount within the above-mentioned three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the case.

The applicant was sent the terms of both unilateral declarations by the Government several weeks before the date of this decision. The Court has not received a response from the applicant accepting the terms of these declarations.

The Court observes that Article 37 § 1 (c) enables it to strike a case out of its list if:

> "... for any other reason established by the Court, it is no longer justified to continue the examination of the application".

Thus, it may strike out applications under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued (see, in particular, the *Tahsin Acar v. Turkey* judgment (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI).

The Court has established clear and extensive case-law concerning complaints relating to the freedom of assembly (see, for example, *Hyde Park and Others v. Moldova (nos. 5 and 6)*, nos. 6991/08 and 15084/08, §§ 41 et seq., 14 September 2010, and *Promo Lex and Others v. the Republic of Moldova*, no. 42757/09, §§ 21-28, 24 February 2015).

Noting the admissions contained in the Government's declaration, the amendments to the domestic law as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)).

In the light of the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declarations, the application may be restored to the list in accordance with Article 37 § 2 of the Convention (*Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

In view of the above, it is appropriate to strike the case out of the list as concerns the complaint under Article 11 of the Convention.

The applicant also alleged a violation of Article 10 of the Convention. As this complaint relates to the same matters as those considered under Article 11, the Court does not consider it necessary to examine it separately (see *Brega v. Moldova*, no. 52100/08, § 48, 20 April 2010).

For these reasons, the Court, unanimously,

Takes note of the terms of the respondent Government's declarations concerning the breach of the applicant's rights under Article 11 of the Convention and of the arrangements for ensuring compliance with the undertakings referred to therein;

Decides to strike this part of the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention;

Decides that there is no need to examine the complaint under Article 10 of the Convention.

Done in English and notified in writing on 24 September 2020.

Liv Tigerstedt	Arnfinn Bårdsen
Acting Deputy Registrar	President

APPENDIX

Application raising complaints under Articles 10 and 11 of the Convention
(refusal to give authorisation to hold a meeting)

Application no. Date of introduction	Applicant's name Date of birth	Representative's name and location	Date of receipt of Government's declaration	Date of receipt of applicant's comments, if any	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
32242/07 08/06/2007	**Anatolie POSTOLIUC** 20/02/1949	Balan Veaceslav Chişinău	22/04/2010 and 02/10/2013	-	2,500

[1] Plus any tax that may be chargeable to the applicant.